

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2022-CC-7183-AX

JAMES B. FOX and
ANY UNKNOWN TENANT(s),

Defendants.

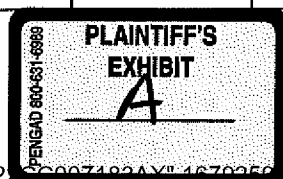
AFFIDAVIT OF INDEBTEDNESS

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared CHERYL PEAKE, Park Manager of COLONIAL MANOR MHC HOLDINGS, LLC, who, being first duly sworn, deposes and says:

The following is a breakdown of the fees, costs and expenses incurred in the above referenced cause relating to 900 9th Avenue East, Lot #91, Palmetto, Florida, inclusive of the anticipated costs of judicial sale:

Past Due Rent including late fees including February 2023	\$5,065.50	
Water and Sewer Fees including late fees	\$545.04	
reserved		
Attorney Fees	\$2,100.00	
Costs	\$721.20	
Total Indebtedness:	\$8,431.74	

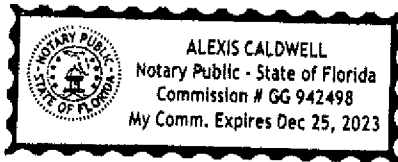


FURTHER AFFIANT SAYETH NOT.

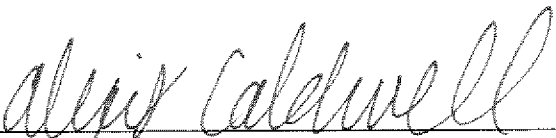
COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR
900 9th Avenue West
Palmetto, Florida 34221

By: 
Cheryl Peake, Park Manager

SWORN TO AND SUBSCRIBED before me, by means of ☒ physical presence or ☐ online notarization, this 1st day of March 2023, by CHERYL PEAKE, who is ☒ personally known to me or ☐ produced identification; type of identification produced: _____.



My Commission Expires:


Notary Public, State of Florida at Large

Alexis Caldwell
Printed Name of Notary Public

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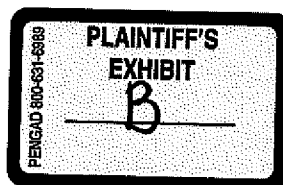
AFFIDAVIT OF TIME AND COSTS EXPENDED

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority duly authorized by the laws of the State of Florida to administer oaths, personally appeared **WILLIAM C. PRICE, III, ESQUIRE**, of 522 Twelfth Street West, Bradenton, Florida, who being first duly sworn, deposes and states as follows:

1. WILLIAM C. PRICE, III, attorney for the Plaintiff, states that this is a breakdown of the actual time expended and costs advanced in the pursuit of the Plaintiff's claim including the time anticipated to be expended at the hearing on Plaintiff's Hearing on Motion for Summary Judgment and the Judicial Sale of the Mobile Home which is the subject of this cause of action and affides that the amount of time expended and the acts taken on behalf of the Plaintiff are as follows:

ATTORNEY'S FEES				
Date	Services Rendered	Hours	Rate	Amount
12/20/2022	Preparation of Complaint, Research on Tenant and Drafting of Summons and Certificate of Mailing	1.3	\$300.00	\$390.00
01/06/2023	Preparation of Motion for Default and Default for Clerk signature	.3	\$300.00	\$90.00

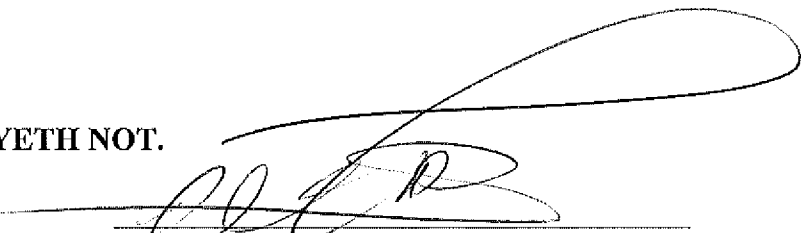


01/11/2023	Cover Letter to Judge Inman with Judgment for Possession	.5	\$300.00	180.00
01/23/2023	Preparation and submission of Writ of Possession	.5	\$300.00	150.00
01/25/2023	Conference with client about obtaining possession and dealing with two dealers that want to sell mobile home upon taking possession of same	.3	\$300.00	90.00
02/28/2023	Preparation of Motion for Final Summary Judgment for Damages and Judicial Sale, Preparation of Affidavit of Indebtedness, Attorney Fees and Costs and Proposed Final Judgment	2.0	\$300.00	\$600.00
03/07/2023	Attendance at Final Hearing and Preparation of Final Judgment	.5	\$300.00	\$150.00
03/08/2023	Preparation of Notice of Sale, Publication, Certificate of No Disbursement. Certificate of Sale, Certificate of Title, Costs of Publication (Business Review)	.6	\$300.00	\$180.00
04/0/2023	Attendance at Judicial Sale and trip to tag agency for title, preparation of Power of Attorney and Application for Title	1.0	\$300.00	\$300.00
		7		\$2,100.00

DATE	COSTS ADVANCED	AMOUNT
01/07/2021	Florida ePortal: Filing Fee Complaint Seeking Eviction, etc., and Summonses issued James B. Fox and Any Unknown Tenant(s)	\$331.20
01/20/2021	George Hooper, Process Server: Service of Summons and Complaint on James B. Fox and Any Unknown Tenants	\$80.00
02/11/2021	Manatee County Sheriff's Office: Service - Writ of Possession	\$90.00
03/08/2023	Cost of Judicial Sale (To Clerk)	\$70.00
03/08/2023	Publication of Notice of Judicial Sale	\$150.00
03/08/2023	Costs of Title Transfer	TBD
	TOTAL	\$721.20

2. The total sum of attorney time expended, not including time expended to obtain attorney's fees to date is \$2,100.00 (7 hours at \$300.00/hour). The costs incurred to date not including expenses of collection of the final judgment are \$721.20.

FURTHER AFFLIANT SAYETH NOT.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Fax: (941) 747-3730
wcp3@wcpricelaw.com
Attorney for the Plaintiff

SWORN TO AND SUBSCRIBED this 2nd day of march, 2023.

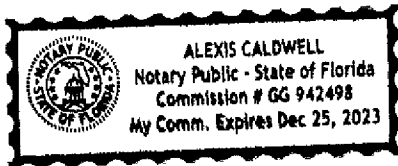


Notary Public

My Commission Expires:

alexis caldwell

Printed Name of Notary Public



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Defendants.

AFFIDAVIT OF ATTORNEY'S FEES

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared **E. BLAKE MELHUISH, ESQUIRE**, of Bradenton, Florida, who being first duly sworn, deposes and states as follows:

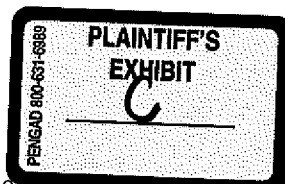
1. I have been a practicing attorney in Manatee County, Florida, since 1989 and, as such, I am familiar with the fees charged by attorneys for legal proceedings in this Court and in Manatee County, Florida.

2. I have no interest whatsoever in this cause, and am not associated in the practice of law with William C. Price, III, P.A., although we share office space.

3. I have had occasion to examine the file in this cause, and I am familiar with same.

4. That on the basis of the examination of the file, the difficulty of the matter and the time expected to perform legal services, and my knowledge of the fees customarily charged, it is my opinion that \$300.00 per hour is a reasonable hourly fee for the services rendered, that seven (7) hours is a reasonable amount of time to perform the services required of attorney in the above styled matter and that the sum of \$2,100.00 is a reasonable attorney's fee for prosecution of the above styled cause.

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FURTHER AFFIANT SAYETH NOT.



E. BLAKE MELHUIH, ESQUIRE

Florida Bar No. 0825972

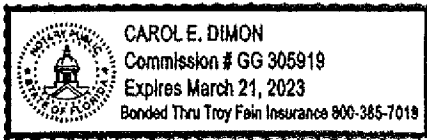
E. BLAKE MELHUIH, P.A.

SWORN TO AND SUBSCRIBED before me, by means of ☒ physical presence or ☐ online notarization, by E. BLAKE MELHUIH, ESQUIRE, who is personally known, on this 2ND day of March, 2023.



Notary Public, State of Florida at Large

My Commission Expires:



CAROL E. DIMON

Printed Name of Notary Public